

Main Features of The Constitution of Pakistan and Their Islamic Provisions



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Main Features of the Constitutions of Pakistan



(1956)



(1962)



(1973)

Constitution of 1956

It was adopted by the 2nd Constituent Assembly on February 29, 1956, & enforced on March 23, 1956:

Articles: 234; Parts: 13; Schedules: 06

Federal System

Federal System of Government was Introduced.

Foreign Policy

Maintenance of Close Relationships with the Muslim countries of the world was emphasized.

The President

Governor General was replaced by the president. Which made Iskandar Mirza the first president of Pakistan.

Rights of Minorities

The Rights of Minorities were given to ensure their protection.

Fundamental Rights

Fundamental rights were safeguarded.

Independent Judiciary

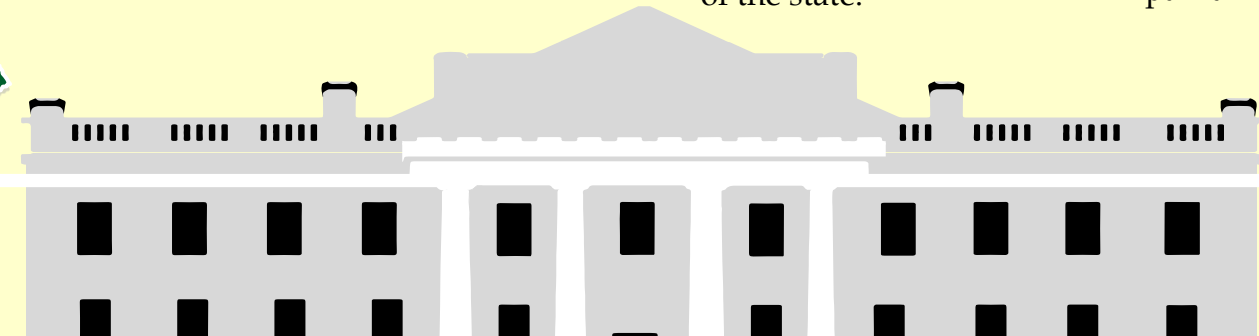
Judiciary enjoyed full freedom.

National Language

Urdu and Bangla were made National Languages of the state.

Rigid Constitution

Any amendment in it was needed 2/3rd of majority of the parliament.



Constitution of 1962

- **Dates:** Promulgated by President Ayub on 1st March 1962 & Enforced on June 08, 1962
- **Form of Govt:** It introduced the Presidential System.
 - It means All the powers were concentrated in the office of the President.
- **Basic Democracy:** The System of Basic Democracy was made part of the constitution.
- **Organization:** Articles (250); Parts (12); Schedule (03)
- **Election System:** An Indirect System of election was introduced.
- **The judiciary:** Independent & responsible for the **interpretation of laws**.
- **National Languages:** Urdu & Bangla.
- **Nature:** It was also a **Rigid Constitution**; Amending it required a **2/3 Majority**



Constitution of 1973

Passed by NA on 10th April; Authenticated by President on 12th April; Enforced on 14th August 1973

Articles: 280; Parts: 12; Schedules: 07

Federal System

The Constitution provided for Federal System to function.

Prime Minister

The Prime Minister would be elected by majority of the National Assembly members.

Bi-Cameral System

A parliament would be considered of two houses. The upper one would be called a Senate and the lower one would be called a National Assembly.

Provincial Autonomy

The provincial Government were granted autonomy

Human Rights

To protect Human Rights, safeguards were provided.

Free Judiciary

The Judiciary enjoys full supremacy over the other organs of the state

National Language

Urdu would be the National Language.

Rigid Constitution

Any amendment in it was needed 2/3rd of majority of the parliament.



Islamic Provisions of the constitution of Pakistan

(1956) (1962) (1973)



1956 Constitution

The 1956 Constitution marked Pakistan's first attempt at framing a constitution as an independent state. Its provisions related to Islam were as follows:

Declaration of Islamic Republic:

Article 1 of the 1956 Constitution declared Pakistan as an Islamic Republic.

Islamic Advisory Councils:

Article 31 allowed for the establishment of Islamic advisory councils at both the federal and provincial levels. These councils were to advise on matters related to Islamic law and practices.

State Religion:

Article 2 established Islam as the state religion of Pakistan. It explicitly stated that the principles of democracy, freedom, equality, tolerance, and social justice as enunciated by Islam should be fully observed.

Laws Conforming to Islam:

Article 2 also stipulated that no law would be enacted that was repugnant to the Quran and Sunnah. This meant that all laws in Pakistan were supposed to be in accordance with Islamic principles.

1962 Constitution

The 1962 Constitution, enacted during the presidency of Ayub Khan, continued to emphasize the role of Islam in the state:

Declaration of Islamic Republic:

Like the 1956 Constitution, Article 1 of the 1962 Constitution declared Pakistan as an Islamic Republic..

Council of Islamic Ideology:

The 1962 Constitution established a Council of Islamic Ideology. This council was tasked with advising the government on whether a proposed law was in conformity with Islamic principles.

State Religion:

Article 2 of this constitution reiterated that Islam would be the state religion of Pakistan.

Conformance with Islamic Principles

Article 2 also required that laws in Pakistan should conform to the Quran and Sunnah.

1962



1973 Constitution

The 1973 Constitution of Pakistan, which is the current constitution, maintains the Islamic provisions:

Declaration of Islamic Republic:

Article 1 of the 1973 Constitution reaffirms Pakistan as an Islamic Republic.

Islamization of Laws

Article 227 directs that all existing laws shall be brought into conformity with the Islamic injunctions as laid down in the Quran and Sunnah. This has been the basis for the process of Islamization of laws in Pakistan.

State Religion:

Article 2 designates Islam as the state religion, emphasizing that all existing laws should be brought into conformity with Islamic teachings.

Council of Islamic Ideology:

Article 230 establishes the Council of Islamic Ideology, which is responsible for advising Parliament on whether any law is repugnant to the injunctions of Islam.

1973



Conclusion

- The conclusion of Islamic provisions is that Pakistan's goal is to become a responsible and just country in Islamic terms, committed to justice, equality, and humanity.
- These provisions illuminate the path of governing in the light of Islamic justice and humanity for all of Pakistan's citizens.
- However, the details and implementation of these provisions may vary according to each constitution and law.



Thank you for your time and attention!

Hopefully, I will see you in the next class. Until then, take care, & have a great day!